

Amendment No. 1 to SB0438

Reeves
Signature of Sponsor

AMEND Senate Bill No. 438*

House Bill No. 667

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 68, Chapter 211, Part 1, is amended by adding the following as a new section:

(a) There is created the advisory task force on solid waste to examine and review issues related to solid waste. The task force shall focus its examination and review on innovative processes for the disposition of solid waste and shall review all aspects of the disposition of solid waste that the task force determines to be necessary, including, but not limited to, landfilling, recycling, incineration, agricultural uses, and energy production.

(b) The task force must be composed of fifteen (15) members, as follows:

(1) The governor, or the governor's designee;

(2) The chair of the energy, agriculture and natural resources committee of the senate, or the chair's designee;

(3) The chair of the committee of the house of representatives with jurisdiction over subject matters pertaining to solid waste disposal, or the chair's designee;

(4) Six (6) individuals appointed by the speaker of the senate; and

(5) Six (6) individuals appointed by the speaker of the house of representatives.

(c) The task force members appointed pursuant to subdivisions (b)(4) and (5) must be individuals who have expertise in the subject of solid waste or a subject related to one (1) or more processes for the disposition of solid waste.

(d) Appointments to the task force must be made within thirty (30) days of the effective date of this act. The terms of all appointed members of the task force begin upon appointment to the task force, and expire June 30, 2029. The governor's term must coincide with the governor's term of office. The terms of legislative members of the task force continue so long as such persons continue to be members of the general assembly and chairs of their respective committees.

(e) An appointed member of the task force is subject to removal from the task force for cause by the member's appointing authority. If an appointed member ceases to be a member of the task force, then the appointing authority shall appoint a successor to complete the term.

(f) The chair of the energy, agriculture and natural resources committee of the senate, or the chair's designee, shall serve as the chair of the task force. The chair of the committee of the house of representatives with jurisdiction over subject matters pertaining to solid waste disposal, or the chair's designee, shall serve as the vice chair of the task force.

(g) The chair shall call all meetings of the task force.

(h) The task force may conduct hearings; receive input, either in writing or in a hearing, from experts and the public; and coordinate with departments of the executive branch.

(i)

(1) In the fulfillment of its duty to examine and review issues related to solid waste, the task force may travel and conduct meetings outside this state.

(2)

(A) The non-legislative members of the task force shall serve without compensation but shall be eligible for reimbursement of travel expenses incurred. All reimbursement for travel expenses must be in conformity with the comprehensive state travel regulations as promulgated by the commissioner of finance and administration and approved by the attorney general and reporter.

(B) The legislative members of the task force are eligible for reimbursement of travel expenses incurred in conformity with § 3-1-106, and may expend funds pursuant to § 2-10-114(f).

(3) A legislative member of the task force is entitled to reimbursement for the member's expenses for each day the member attends a meeting of the task force in the same manner as the member is paid for attending legislative meetings pursuant to § 3-1-106; provided, that a member must not receive additional legislative compensation when the general assembly is in session or if the member is being paid for attendance for other state business occurring on the same day as a meeting of the task force.

(j) By June 15, 2026, and each June 15 thereafter through 2029, the task force shall produce a report and submit it to the members of the general assembly and the legislative librarian. It is the intent of this act that the task force's reports are published on an appropriate page of the general assembly's website.

(k) The task force shall terminate July 1, 2029.

SECTION 2. Tennessee Code Annotated, Section 68-211-821, is amended by adding the following as a new, appropriately designated subsection:

(d) The department may accept voluntary contributions, and may apply for grants, from private companies, which may be combined with monies in the solid waste management fund established by subsection (a), for grants for recycling infrastructure, recycling projects, and composting administered pursuant to § 68-211-825.

SECTION 3. It is the intent of this act that one hundred thousand dollars (\$100,000) of existing funds in the solid waste management fund, created or referenced in title 68, chapter 211, part 8, be allocated to funding the advisory task force on solid waste created by Section 1.

SECTION 4. This act is not an appropriation of funds, and funds must not be obligated or expended pursuant to this act unless the funds are specifically appropriated by the general appropriations act.

SECTION 5. This act takes effect upon becoming a law, the public welfare requiring it.